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Chapter 3 - USCIS Authority to Naturalize

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It has long been established that Congress has the exclusive authority under its constitutional power to establish a uniform rule of naturalization and to enact legislation under which citizenship may be conferred upon persons.^[1] Before 1991, naturalization within the United States was a judicial function exercised since 1790 by various courts designated in statutes enacted by Congress under its constitutional power to establish a uniform rule of naturalization.

As of October 1, 1991, Congress transferred the naturalization authority to the Attorney General (now the Secretary of DHS).^[2] USCIS is authorized to perform such acts as are necessary to properly implement the Secretary's authority.^[3] In certain cases, an applicant for naturalization may choose to have the Oath of Allegiance^[4] administered by USCIS or by an eligible court with jurisdiction. Eligible courts may choose to have exclusive authority to administer the Oath of Allegiance.

Footnotes

^[^1] See *Chirac v. Chirac*, 15 U.S. 259 (1817).

^[^2] See [INA 310\(a\)](#).

^[^3] See [INA 310](#).

^[^4] See [INA 337\(a\)](#).



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